

1. Theory

- **Theory #1:** [One-sentence theory in your exact words.] - **Law(s):**
[42 U.S.C. §
1983] (<https://uscode.house.gov/view.xhtml?req=%28title:42%20section:1983%20edition:prelim%29>)
[1] (<https://uscode.house.gov/view.xhtml?req=%28title:42%20section:1983%20edition:prelim%29>) ; [Cal. Civ. Code § 52.1 (Tom Bane Civil Rights Act)] (https://california.public.law/codes/civil_code_section_52.1)
[2] (https://california.public.law/codes/civil_code_section_52.1).
- **Theory #2:** [One-sentence theory in your exact words.] - **Law(s):**
[First
Amendment] (<https://constitution.congress.gov/constitution/amendment-1/>)
[3] (<https://constitution.congress.gov/constitution/amendment-1/>) ;
[Fourteenth
Amendment] (<https://constitution.congress.gov/constitution/amendment-14/>)
[4] (<https://constitution.congress.gov/constitution/amendment-14/>).
- **Theory #3:** [One-sentence theory in your exact words.] - **Law(s):**
[ADA Title II (42 U.S.C. §
12132)] (<https://uscode.house.gov/view.xhtml?req=granuleid:USC-prelim-title42-section12132&num=0&edition=prelim>)
[5] (<https://uscode.house.gov/view.xhtml?req=granuleid:USC-prelim-title42-section12132&num=0&edition=prelim>) ; [Cal. Gov. Code §
11135] (https://california.public.law/codes/government_code_section_11135)
[6] (https://california.public.law/codes/government_code_section_11135).

2. Missing

- **Missing evidence #1:** [Exact item you still need.] - **Portal:**
[Find your California court (to locate the correct clerk/self-help
desk/links)] (<https://courts.ca.gov/find-my-court>)
[7] (<https://courts.ca.gov/find-my-court>).
- **Missing evidence #2:** [Exact item you still need.] - **Portal:**
[California Legislative Information "Find California Code"
search] (<https://www.leginfo.ca.gov/cgi-bin/calawquery>)
[8] (<https://www.leginfo.ca.gov/cgi-bin/calawquery>).
- **Missing evidence #3:** [Exact item you still need from a court case
file.] - **Portal:** [Find the Right Court (Self-Help court
locator)] (<https://selfhelp.courts.ca.gov/self-help/find>)
[9] (<https://selfhelp.courts.ca.gov/self-help/find>).
- **Missing evidence #4:** [Exact item you still need (e.g., agency
report/video/log).] - **Portal:** Insert the exact agency portal URL
where the record is held.
- **Formatting rule (if filing on pleading paper):** [Use California
trial court format rules when not using a pre-made form.] - **Rule:**
[CRC 2.100 (form/format preemption + trial court formatting
rules)] (https://courts.ca.gov/cms/rules/index/two/rule2_100)
[10] (https://courts.ca.gov/cms/rules/index/two/rule2_100).

3. Proven

- **Proven fact #1:** [Copy the fact verbatim from your upload in one
sentence.] - **Source:** FILE_NAME.ext at [page/line/timecode].
- **Proven fact #2:** [Copy the fact verbatim from your upload in one
sentence.] - **Source:** FILE_NAME.ext at [page/line/timecode].
- **Proven fact #3:** [Copy the fact verbatim from your upload in one
sentence.] - **Source:** FILE_NAME.ext at [page/line/timecode].

- ****Declaration language (for your Proven facts if filed as a declaration):**** [Use California "penalty of perjury" declaration form text.] - ****Law:**** [CCP § 2015.5] (https://california.public.law/codes/code_of_civil_procedure_section_2015.5)
[11] (https://california.public.law/codes/code_of_civil_procedure_section_2015.5).

4. Submission to get help now

- ****Court/track selected ONLY from Proven facts:**** [Pick ONE: (A) Civil Harassment RO (B) Ex Parte emergency relief (C) Motion in an existing case (D) Federal complaint)] - ****Court locator:**** [Find your court] (<https://courts.ca.gov/find-my-court>)
[7] (<https://courts.ca.gov/find-my-court>).
- **** (A) If Proven shows harassment/threats/stalking and you need a restraining order:**** [File CH-100 and request temporary orders via CH-110 consistent with CCP § 527.6.] - ****Forms/Law:**** [CH-100] (<https://selfhelp.courts.ca.gov/jcc-form/CH-100>)
[12] (<https://selfhelp.courts.ca.gov/jcc-form/CH-100>) ; [CH-110] (<https://courts.ca.gov/sites/default/files/courts/default/2024-11/ch110.pdf>)
[13] (<https://courts.ca.gov/sites/default/files/courts/default/2024-11/ch110.pdf>) ; [CCP § 527.6] (https://california.public.law/codes/code_of_civil_procedure_section_527.6)
[14] (https://california.public.law/codes/code_of_civil_procedure_section_527.6) ; [All CH forms hub] (<https://selfhelp.courts.ca.gov/CH-restraining-order/forms>) [15] (<https://selfhelp.courts.ca.gov/CH-restraining-order/forms>).
- **** (B) If Proven shows immediate danger/irreparable harm and you cannot wait for normal notice:**** [File a California civil ex parte application packet with all required documents and required notice timing.] - ****Rules:**** [CRC 3.1201 (required documents)] (https://courts.ca.gov/cms/rules/index/three/rule3_1201)
[16] (https://courts.ca.gov/cms/rules/index/three/rule3_1201) ; [CRC 3.1202(c) (affirmative factual showing)] (https://courts.ca.gov/cms/rules/index/three/rule3_1202)
[17] (https://courts.ca.gov/cms/rules/index/three/rule3_1202) ; [CRC 3.1203 (time of notice)] (https://courts.ca.gov/cms/rules/index/three/rule3_1203)
[18] (https://courts.ca.gov/cms/rules/index/three/rule3_1203).
- **** (C) If Proven supports relief in an existing case number:**** [File a noticed motion supported by a memorandum and declarations/exhibits.] - ****Rule:**** [CRC 3.1113 (memorandum requirement/contents/limits)] (https://courts.ca.gov/cms/rules/index/three/rule3_1113)
[19] (https://courts.ca.gov/cms/rules/index/three/rule3_1113).
- **** (D) If Proven supports federal civil-rights pleading:**** [Draft claims in numbered paragraphs with a proper caption/party naming consistent with federal pleading form rules.] - ****Rule:**** [FRCP 10] (https://www.law.cornell.edu/rules/frcp/rule_10)
[20] (https://www.law.cornell.edu/rules/frcp/rule_10).

5. The Defense

- **Defense claim #1:** [One-sentence "they will say ..." justification.] -
Code(s) they will cite: [California Legislative Information-Codes
(entry point)] (<https://leginfo.legislature.ca.gov/faces/codes.xhtml>)
[21] (<https://leginfo.legislature.ca.gov/faces/codes.xhtml>) ; [Find
California Code (search)] (<https://www.leginfo.ca.gov/cgi-bin/calawquery>)
[8] (<https://www.leginfo.ca.gov/cgi-bin/calawquery>).
- **Defense claim #2:** [One-sentence "they will say ..." justification.] -
Specific section link: Paste the exact Penal/Vehicle Code section URL
here (example pattern:
`https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawC
ode=PEN§ionNum=____`).
- **Defense claim #3:** [One-sentence "they will say ..." justification.] -
Specific section link: Paste the exact Vehicle Code section URL here
(example pattern:
`https://leginfo.legislature.ca.gov/faces/codes_displaySection.xhtml?lawC
ode=VEH§ionNum=____`).